

RWS Terms and Conditions for Vendors

These RWS Terms and Conditions for Vendors ("Terms") is entered into on the Effective Date by and between RWS Group Limited, with its registered address at Europa House, Chiltern Park, Chiltern Hill, Chalfont St Peter, SL9 9FG, United Kingdom, on behalf of itself and Affiliates (collectively, "RWS"), and Vendor as identified in the RWS Vendor Management System ("Vendor") to which these Terms are executed and made part of.

1. Definitions

"Acceptance Criteria" means the requirements and conditions that a Service or Deliverable stated in an Order Form and under these Terms which Vendor must satisfy to be accepted by RWS.

"Affiliate" means an entity (a) that directly or indirectly controls, is controlled by, or is under common control with a party under these Terms, where **"control"** means ownership of more than fifty percent (50%) of the securities or voting power of the subject entity, and in the context of any other business entity, shall mean the right to exercise similar management and control of such entity, or (b) which is controlled, directly or indirectly, by the ultimate parent company.

"RWS Client" means any RWS existing or prospective customer, whether a person, firm or entity.

"Confidential Information" means (i) any data, information, materials or knowledge regarding RWS, including but not limited to, RWS Clients, respective businesses, financial condition, products, software, services, programming techniques, pricing, suppliers, technology, or research and development that is disclosed to Vendor or to which the Vendor has access in connection with performing the Services, (ii) any data, information, documents, files, software, materials, reports, process, procedures, methodologies, or knowledge acquired or used by the Vendor as provided by RWS or any RWS Client in the performance of the Services, (iii) RWS Materials and Deliverables, and (iv) the existence and terms and conditions of these Terms. Confidential Information does not include any information that is or becomes part of the public domain through no fault of the Vendor or that RWS regularly gives to third parties without restrictions on use or disclosure.

"Deliverables" means the work product, output or result of the Services required to be delivered by Vendor as specified in the applicable Order Form.

"Effective Date" means the date these Terms were accepted by the Vendor in the RWS Vendor Management System.

"Fees" means the fees payable for the Services at the rates set forth in the RWS Vendor Management Systems or as otherwise provided in the relevant Order Form.

"IPR" means all intellectual property rights, including without limitation, copyright, patents, trademarks, domain names, data, software systems and information and anything similar or related thereto, whether registered, unregistered or applied for (or pending) created by the Vendor or its Personnel in the course of the Service.

"Order Form" means the ordering record agreed by RWS and Vendor specifying the Services and Deliverables that Vendor is required to provide and all other relevant project and Fee related terms.

"Personnel" means individually or collectively, Vendor's employees, contractors, and agents who are authorized in accordance with these Terms to perform Services, and to provide Deliverables to RWS on behalf of Vendor.

"RWS Materials" means all information, files, materials, tools, software, project specifications, equipment, or any other intellectual property furnished to Vendor by RWS, on behalf of RWS or any RWS Client for use in connection with or arising out of the Services and Deliverables to be provided under these Terms.

"RWS Vendor Management System" means RWS' web-based tool for onboarding and administration of Vendors.

“Services” means such Types of Services as are designated in the applicable Order Form which Vendor is required to perform.

“Terms” means collectively, these RWS Terms and Conditions for Vendors, any Order Forms, and any exhibits, schedules and other documents made part of these Terms or otherwise included by reference.

“Types of Services” means services as defined in Article 2 of these Terms.

2. Services

2.1. Scope of Work and Order Forms. Under these Terms, the Vendor undertakes to carry out specific Services and to provide Deliverables from time to time in accordance with an Order Form. These Terms are hereby incorporated by reference into each Order Form. In consideration of the performance of such Services and Deliverables by the Vendor, RWS shall pay the Vendor the Fees specified in the applicable Order Form.

2.2. Conflict. In the event of any conflict or inconsistency between the provisions of these Terms and the provisions of an Order Form, the provisions of the Order Form shall control. Nothing in these Terms commits either party to enter into any Order Form hereunder.

2.3. Non-Exclusivity. RWS and the Vendor accept and agree that any work undertaken in accordance with these Terms is on a non-exclusive basis.

2.4. Acceptance of Order Form. An Order shall be deemed accepted by the Vendor upon receipt, unless Vendor notifies RWS in writing of its rejection within one (1) day of receipt. In the event of a timely rejection, the parties shall use their best efforts resolve their differences.

2.5. Process of Change of Order Form. RWS may modify an Order Form during the term of the project to reflect changes in the project scope, volume, changes to the RWS Materials, and dates of Service. In such case the parties will mutually agree on delivery date(s) and make appropriate adjustment to the Fees if necessary.

2.6. Affiliates. These Terms may extend to RWS Affiliates. An RWS Affiliate may purchase Services hereunder by executing an Order Form with Vendor which specifically references these Terms. Such Order Form, including these Terms incorporated therein, shall form a contract solely between the parties executing that Order Form. With respect to each Order Form signed by an Affiliate, all references to “RWS” in these Terms and such Order Form shall be deemed to refer solely to such RWS Affiliate.

2.7. Types of Services. The Services may include one or more of the following Types of Services:

- (a) Localisation of written text, software files, documentation and ancillary materials including post-editing, copywriting and transcreation, to meet the requirements and standard idioms of the language or languages used in a particular country or countries (“Translation”);
- (b) Software testing, including linguistic software testing (“Software Services”);
- (c) Reading or supporting readings from a prepared script or such other medium as may be prescribed or amended from time to time in accordance with direction from RWS for recording as a spoken or other vocal performance (“Voice Over”);
- (d) Engineering of software files, text and other computer medium (“Engineering”);
- (e) Desk Top Publishing work that brings together text and graphics into an electronic format (“DTP”);
- (f) Interpreting;
- (g) Proofreading and Quality Assurance;
- (h) Filing and Validation Services;
- (i) Data Services;
- (j) Creative Services;
- (k) E-Learning Services; and
- (l) Other services as further specified in an Order Form.

3. Representations and Warranties

3.1. Vendor acknowledges that prior to commencing any Services, Vendor may be subject to further qualification and/or testing (e.g. test translation, recording, DTP, etc.) All qualification and testing tasks will be performed by Vendor free of charge.

3.2. The Vendor expressly warrants that:

(a) it is a citizen and / or legal resident or legal entity of the country listed on the RWS Vendor Management System;

(b) it will only accept work which is within the competence of the Vendor;

(c) it has obtained all necessary licenses for all software used on its premises or by its Personnel or as otherwise required to perform the Services;

(d) it has no pre-existing obligations or commitments (and will not assume or otherwise undertake any obligations or commitments) that will create a conflict of interest with its obligations owed to RWS under these Terms or that would hinder its obligations under these Terms;

(e) it will deliver the Services on time in accordance with the requirements and Acceptance Criteria set forth in applicable Order Form;

(f) it will promptly, but in no event later than within 24 hours from any actual or expected event that will or could cause there to be a delay in providing the Services, notify RWS;

(g) its Services will be performed in a timely, efficient, and professional and workmanlike manner, and in conformity with the highest professional standards for comparable services in the industry;

(h) it will not violate the intellectual property rights of any third party;

(i) it does not exceed local statutory limits for working hours which may constitute reclassification of the business relationship into employment;

(j) neither Vendor nor its Personnel are subject to any Sanction Regulations as outlined below; and

(k) Services and Deliverables shall be free from any errors, inaccuracies, inconsistencies, incorrect references and shall conform to all specifications, requirements and instructions set forth in the applicable Order Form.

3.3. In the event of breach of this warranty, Vendor hereby agrees to promptly correct or re-perform any Service or Deliverable. If Vendor fails to correct or re-perform the Service or Deliverable, RWS may terminate the relevant Order Form with immediate effect.

3.4. Each party warrants that when performing their obligations under these Terms each party will comply with all applicable local, national and international laws and regulations.

4. Independent Contractor

4.1. It is understood and agreed that the relationship between the parties is that of independent contractors and nothing in these Terms or in any Order Form will be deemed to create an employment, agency, joint venture or partnership relationship between the parties hereto or any of their Personnel, or any other legal arrangement that would impose liability upon a party for the act or failure to act of the other party.

4.2. Neither Vendor nor its Personnel shall have the authority to make any statements, representations or commitments of any kind, or take any action, which shall be binding of RWS, its RWS Clients, or any other third party authorized by RWS, without the prior consent of RWS.

4.3. Neither RWS nor RWS Clients assume the debts of the Vendor or its Personnel as a result of executing these Terms. Neither RWS nor RWS Clients shall be responsible for worker's compensation, disability or unemployment insurance for the Vendor or its Personnel. Vendor acknowledges and agrees that the Services rendered pursuant to these Terms will not form the basis for any rights or eligibility, vesting or

participation in any fringe benefits afforded to any employees of RWS or RWS Clients.

4.4. Services shall be provided at Vendor's place of business described in the RWS Vendor Management System unless alternative locations are expressly agreed by the parties in the applicable Order Form. Save to any extent expressly provided for in these Terms or an Order Form, the Vendor and its Personnel shall be responsible for the provision of equipment used by the Vendor in the performance of the Services, and all general expenses incurred by the Vendor and its Personnel in performing the Services.

5. Code of Conduct

The Vendor will comply with the RWS's Supplier Code of Conduct, which includes without limitation, anti-corruption and anti-bribery, safe working environment, non-discrimination and anti-harassment policies and procedures. The most current version of RWS's Supplier Code of Conduct is available [here](#) and shall be incorporated herein by reference.

6. Background Screening

6.1. Vendor hereby agrees to submit itself and its Personnel to background screening and, where required by RWS, supply all necessary information to enable screening of identity, educational and professional qualifications to the extent permitted by applicable law. In addition, Vendor agrees that where required, due to the sensitive nature of the Services, to submit itself and its Personnel to more rigorous checks such as financial status, criminal convictions, watchlist screen (such as Terrorist Exclusion List) and drug screening to the extent permitted by applicable law. Vendor understands that failing to agree to these requirements may result in exclusion from the opportunity to receive work and perform Services.

6.2. Vendor and its Personnel shall comply with, and shall not engage or pay any persons or entities who are subject to all applicable trade sanctions laws, including the EU sanctions regulations, the United States Office of Foreign Assets Control ("OFAC") sanctions regulations, the Export Administration Regulations ("EAR"), the UK Statutory Instruments which implement

EU sanctions regulations, and the UK Export Control requirements, along with the governments of the other jurisdictions where RWS operates ("Sanction Regulations").

7. Confidentiality

Vendor agrees that it shall: (a) hold (and to procure that its Personnel hold, the Confidential Information in strict confidence and shall use such Confidential Information only for the purposes of performing its obligations under these Terms; (b) not disclose (and procure that its Personnel shall not disclose) any RWS Confidential Information to any third party other than its Personnel who have a need to know such information; (c) use the same degree of care with respect to Confidential Information as Vendor takes to safeguard its own Confidential Information, but in no event less than a reasonable degree of care; (d) comply with specific non-disclosure obligations, as notified to the Vendor in any Order Form, that may be imposed on RWS by any RWS Client; and (e) not modify, copy, adapt, customize, reverse engineer (or attempt to reverse engineer), create decompile, disassemble, download, share or create derivative works from the RWS Materials supplied by RWS, any RWS Clients, or produced by Vendor under a relevant Order Form unless such action is specifically required by RWS as is essential to the performance of the Services under these Terms. The confidentiality obligations of this Article 7 shall survive expiration or termination of these Terms.

8. Non-solicitation

8.1. Vendor acknowledges that RWS's relationships with its principals, employees, RWS Clients and other suppliers are valuable business assets of RWS. Vendor agrees that during the term of these Terms and one year thereafter, Vendor shall not directly or indirectly divert or solicit or attempt to divert or solicit from RWS any such principal, employee, RWS Client or supplier through solicitation or otherwise. In the event Vendor violates this non-solicitation clause, RWS shall be entitled to seek and obtain injunctive or other equitable relief or restitution. Without prejudice to its right to receive money damages, RWS shall also have a right to terminate these Terms upon notice with immediate effect.

8.2. Vendor shall immediately inform RWS in case he or she was directly or indirectly solicited by RWS Clients or any other RWS vendor.

9. Non-compete

Except as otherwise prohibited by applicable law, Vendor agrees that during the term of these Terms and for a period of one year thereafter, Vendor shall not perform services for any RWS Clients for which RWS has requested Vendor to provide Services.

10. Defamation

Vendor will not, throughout and succeeding the term of these Terms, compose, declare or transmit (by any method or through any medium) any declaration which defames or damages (or which might have the consequence of defaming or damaging) the reputation of RWS or any of their officers, employees, contractors, representatives, agents and/or RWS Clients.

11. RWS's Obligations

RWS shall:

- (a) provide the Vendor with relevant RWS Materials, documents, and other items required by the Order Form for Vendor to carry out the Services;
- (b) support the Vendor during projects in a professional and timely manner, particularly regarding queries and technical issues; and
- (c) pay the Fees, including any Allowable Expenses, upon receipt of an appropriate invoice and acceptance of the Deliverables and/or Services in accordance with Acceptance Criteria. Where payment is to be made by bank transfer or through some other electronic process, RWS will be obligated for only those charges levied by the originating bank.

12. Vendor's Obligations

Vendor shall:

- (a) provide Services in a professional manner, using industry best practices and procedures and in accordance with the applicable Order Form;
- (b) comply with the obligations related to the specific Type of Services described in Article 2 of these Terms as agreed by the parties in the relevant Order Form;
- (c) not use Machine Translation ("MT"), Artificial Intelligence ("AI") and Large Language Models ("LLMs") while performing Services, unless specifically requested by RWS. The Vendor must inform its Personnel about such prohibition. In case the Vendor discovers that some of its Personnel have used MT, AI or LLMs, the Vendor must notify RWS immediately. Use of MT, AI or LLMs without prior consent of RWS shall be considered a breach of these Terms and subject to immediate termination of these Terms; and
- (d) not utilize any external translation memories which are not approved by RWS in advance of the project commencement date. If external translation memories are identified in Vendor's work it may result in a reduction of payment.

13. Delivery

13.1. Time of Essence. Time is of the essence in with respect to the obligations to be performed under these Terms. Vendor will provide the Services at such time as RWS may specify in an Order Form. In the event Vendor fails to meet its required delivery obligations, RWS may terminate the Order Form with immediate effect,

13.2. Among other remedies for Vendor's delay, RWS may supplement the Vendor's work and deduct associated costs at RWS's election.

14. Pricing, Invoicing, Payment

14.1. Rates, Expenses, Costs. The Fees for the Services are agreed with RWS and are confirmed via the RWS Vendor Management System and set forth in the Order Form. These Fees will apply to all projects unless otherwise specified in the

Order Form. All rates to be paid to the Vendor are final.

The Vendor shall be responsible for covering all of its expenses properly incurred in performing the Services. However, expenses which require reimbursement by RWS must be pre-approved by RWS before they are incurred ("Allowable Expenses"). Such Allowable Expenses must be properly and fully documented and included in the invoice.

14.2. Invoicing. Except as otherwise provided in the applicable Order Form, Vendor shall invoice RWS for Services and Allowable Expenses.

14.3. Payment Terms. RWS agrees to pay all invoices within the term specified in the Order Form. In the event that the payment term is not specified in the Order Form, RWS will pay all Fees and Allowable Expenses within sixty (60) days after receipt of the applicable invoice.

14.4. Right to Withhold. RWS shall have the right to withhold payment of any amount due to Vendor:

- (a) that RWS disputes in good faith;
- (b) that corresponds to Services that are still to be delivered, until full completion of the Services and/or delivery of all delayed Deliverables; and
- (c) if the Vendor is in breach of the warranties in Article 3.1 (e), (g) and (k).

14.5. Right to Deduct. The parties agree that if at any time during the cooperation under these Terms:

- i) Vendor were to fail to meet a delivery date;
- ii) Vendor were to submit any Deliverable to RWS which is rejected;
- iii) RWS elects to have the Deliverable repaired by a third party, or
- iv) RWS is required by law to pay any withholding taxes on payments to the Vendor.

The parties agree that RWS shall have either the right to:

- (a) deduct any such damages caused by Vendor or any amount owed by Vendor (including

the cost of such correction) from any amount then owed to Vendor, or

- (b) invoice Vendor directly to compensate the damages or payment owed to RWS. Vendor will pay the invoiced costs within thirty (30) days from the receipt of the invoice.

15. Taxes and Other Obligatory Payments

Vendor warrants that all VAT, sales, use and other taxes (including withholding taxes), duties, and other governmental fees and charges on any compensation received by Vendor pursuant to these Terms will be paid and borne by Vendor.

16. Indemnities

Vendor will to the fullest extent permitted by applicable law, indemnify, defend, and hold harmless RWS, its Affiliates, employees, directors, officers, contractors, and agents from and against any and all claims, damages, losses, demands, liabilities, costs and expenses, including reasonable attorney's and other professional fees and expenses of any kind whatsoever that arise from or based in connection with:

- (a) any acts or omission by Vendor or its Personnel;
- (b) any personal injury or damage to tangible personal property;
- (c) Vendor's performance or failure to perform its obligation under these Terms;
- (d) the Services or Deliverables, or any part thereof as provided by Vendor to RWS under these Terms, infringe or misappropriate any intellectual property rights of a third party;
- (e) breach of its confidentiality obligations under these Terms;
- (f) any obligation imposed by law on RWS to pay any withholding taxes, social security, pension contributions, unemployment or disability insurance, or similar items in connection with compensation received by Vendor pursuant to these Terms;
- (g) any sums payable to any Personnel used by the Vendor in connection with the Services

and/or any taxes, social security, pension contributions, unemployment or disability insurance in respect of such employees or workers;

(h) any Personnel used by the Vendor in connection with the Services being found or alleged to be an employee of RWS;

(i) the violation of any applicable statute, law or regulation; and

(j) its gross negligence, wilful misconduct or fraud.

17. Limitation of Liability

17.1. Vendor will be liable to RWS for any losses and damages suffered by RWS arising out of these Terms where such losses and damages are directly attributable to a breach of contract, breach of statutory duty or to any negligence of Vendor, its officers, directors, Personnel, contractors, agents or otherwise.

17.2. In no event shall either party's liability under these Terms or any Order Form, exceed the total amount of Fees paid and/or payable to Vendor for Services under the applicable Order Form during the twelve (12) month period prior to the date the cause of action arose, up to a total aggregate cap under these Terms of one million US Dollars (\$1,000,000).

17.3. In no event will either party be liable for any indirect, consequential, special, incidental, punitive, or exemplary damages of any kind, or loss of business revenues or profits, business interruption, or loss of business information in connection with these Terms however caused and whether such loss or damage was foreseeable, known, foreseen, even if such party has been advised of the possibility of such damages.

18. Insurance

Vendor will maintain, at Vendor's expense, and in respect of the Services, insurance cover for itself and for its Personnel who perform Services hereunder, including, but not limited to, the acts, omissions and negligence, professional liability insurance, product and public liability insurance, worker's compensation, and shall advise its

subcontractors to maintain the same insurance cover. The amounts and cover of such insurance should be sufficient to compensate for any and all injury, loss or damage which may result from or arise out of Vendor's and its Personnel's performance of Services under these Terms.

19. Ownership and Intellectual Property Rights

19.1. RWS Materials. All RWS Materials and any improvements, modifications or enhancements made thereto shall be and remain the sole and exclusive property of RWS or RWS Clients, as applicable.

19.2. IPR Ownership. All right, title, and interest in and to any IPR shall automatically vest in RWS or its RWS Clients as applicable. Any such IPR shall not be re-used by the Vendor for any other purpose other than the performance of its obligations under these Terms, except with the express written permission of RWS.

19.3. Deliverables. All right, title and interest in and to the Deliverables (including any IPR incorporated therein) shall remain the sole and exclusive property of RWS, or of any RWS Client, as applicable, and Vendor hereby assigns all proprietary rights to such Deliverables to RWS and to any RWS Clients, as applicable. Neither the Vendor nor its Personnel shall obtain or retain any IPR in any of the Deliverables and/or any other work product resulting from the Services. In addition, Vendor expressly acknowledges its obligation to ensure that any copyrights or ownership in any of the Deliverable resulting from the Services performed by Vendor's employees and/or subcontractors, shall be assigned to RWS in the same extent as defined above in this Article.

19.4. With respect to Voice Over Type of Services, any proprietary rights, licensing and usage will be specified in separate Order Form.

19.5. If applicable law does not allow the Vendor to provide RWS with the above rights, the Vendor hereby assigns without additional cost all such ownership and rights to RWS and grants an irrevocable consent with the further assignment and transfer of such rights and ownership to third parties (i.e. RWS Clients).

19.6. This provision survives termination of these Terms.

20. Logo, Marks, Publicity

20.1. Vendor will not use (or permit its Personnel to use) RWS or any RWS Client trademarks, service marks, trade names and logo for any purpose, including but not limited to, making any reference to the relationship with RWS or any RWS Clients or the terms of these Terms in social media, Vendor's websites, promotional or other publicly available materials.

20.2. Vendor and its Personnel are not allowed to represent themselves as RWS or RWS Clients personnel by using RWS's email auto-signature.

21. Security

21.1. Vendor hereby agrees to be bound by and comply with all applicable data security laws and to comply with the Security Policy in **Exhibit B** and the Acceptable Usage Policy in **Exhibit C** of these Terms.

21.2. Vendor agrees to complete within the time stipulated by RWS any security training required by RWS or as otherwise provided in the Order Form. Vendor will not be paid for this time.

22. Records and Audit

During the term of these Terms, and for a period of twenty-four (24) months thereafter, or a longer term, as specified in writing by RWS or any RWS, Vendor agrees to keep all usual and proper financial books and records relating to its performance of the Services. To verify Vendor's compliance with these Terms, RWS may, during the term of these Terms and for twenty-four (24) months thereafter, or longer term, as specified by RWS or any RWS Client: (a) audit Vendor's books and records to confirm compliance with these Terms, and/or (b) inspect Vendor's facilities and procedures to the extent they are relevant to Vendor's compliance with these Terms. Subject to reasonable advance notice, any audit or inspection hereunder will be conducted during regular business hours at Vendor's facilities and in manner that does not unreasonably interfere with Vendor's operations. Vendor will provide RWS's designated audit and/or inspection team prompt and reasonable access to all relevant

books, records, procedures, and facilities. In addition, if any audit or inspection conducted hereunder reveals a material non-compliance with these Terms, Vendor (a) warrants that action will be taken to become compliant, (b) will compensate RWS for any losses incurred due to this non-compliance, and (c) will pay the cost of such audit or inspection. Information disclosed as part of an audit under this Article will be subject to confidentiality obligations.

23. Personal Data

Vendor hereby agrees to be bound by, and comply with, all applicable data protection laws and the terms of the Data Processing Agreement set forth in **Exhibit A** of these Terms.

24. Force Majeure

Neither party shall be liable for any delay or failure in performance due to any delays or failures of performance under this Agreement or any Order Form due to circumstances beyond its reasonable control, including without limitation, as caused by acts of God, war, epidemic, pandemic, terrorism, civil disturbance, court order, fire, flood, extreme weather conditions, strikes or other labour disturbances ("Force Majeure"). Each party shall immediately notify the other party of the occurrence of such an event affecting such party and shall use all reasonable efforts to recommence performance as soon as possible.

25. Subcontracting, Assignment

25.1. Vendor shall not subcontract the whole or parts of the Services or any other obligations under these Terms without the prior written consent of RWS. However, in the event the Vendor is allowed to engage subcontractors, this shall not relieve Vendor from any liability or obligation under these Terms and Vendor shall be responsible for the acts, omissions, defaults, and negligence of any sub-contractors.

The subcontractors must be governed by terms no less stringent than the terms contained in these Terms and any applicable Order Form.

25.2. These Terms shall be binding upon and inure to the benefit of the parties hereto and their respective successors, administrators, heirs, and assigns, except that the Vendor may not assign,

nor attempt to assign, its rights or obligations under these Terms in any way without the prior written consent of RWS. Any attempted assignment, transfer or delegation, without such consent, will be void. RWS on giving notice to the Vendor may assign these Terms.

26. Term and Termination

26.1. Term. These Terms will commence on the Effective Date and will continue until terminated in accordance with these Terms, unless terminated earlier in accordance with the provisions of these Terms.

26.2. Termination for Cause. Either party has the right to terminate these Terms and any Order Form if the other party breaches any material provision of these Terms or any Order Form and fails to cure such breach within ten (10) business days after receiving written notice thereof.

26.3. Termination for Convenience. Each party has the right to terminate these Terms or any Order Form for convenience with one (1) month written notice. Said termination shall, however, not apply to any Order Form in progress, unless otherwise agreed by the parties in writing.

26.4. Effect of Termination. Upon the termination of these Terms for any reason, Vendor will promptly deliver to RWS all Deliverables, and other material created, developed, performed or generated by the Vendor, including all work in progress on any Services and all versions and portions thereof.

Except for termination of these Terms by RWS due to breach by the Vendor, RWS will pay the Vendor any amounts that are due and payable to the Vendor for Services performed by Vendor up to and including date of termination.

Upon the termination of these Terms for any reason, Vendor will promptly return or destroy all RWS Materials or Confidential Information to RWS at Vendor's expense and in accordance with RWS's instructions. Vendor will certify to RWS, at RWS's request, the completion of fulfilment of RWS's instructions.

The termination of an Order Form does not have the effect of termination of the Terms, unless stated otherwise in notice.

27. Modification -- the Terms and Entire Agreement

27.1. RWS may modify these Terms at any time with at least two weeks written notification to Vendor via the RWS Vendor Management System. If the Vendor does not agree to the changes, Vendor shall notify RWS, otherwise such changes shall be deemed accepted by Vendor. If an agreement between the parties is not reached within one month, these Terms shall be terminated automatically.

27.2. These Terms, Exhibits, Order Forms, and any additional clauses thereto fully express the entire and only agreement between RWS and Vendor with respect to the Services to be provided by Vendor. All prior and collateral understandings, agreements and promises with respect thereto are superseded by these Terms.

28. Governing Law, Jurisdiction

All disputes of whatsoever nature arising from the performance or non-performance of these Terms are subject to the Laws of England and Wales and shall be referred to the exclusive jurisdiction of the English courts. In addition, because the Services are personal and unique and because Vendor will have access to Confidential Information of RWS and RWS Clients, RWS will have the right to enforce these Terms and any of its provisions by injunction, specific performance or other equitable relief in any jurisdiction in which RWS considers appropriate.

29. Notices

All notices or other communications to a party required or permitted hereunder shall be in writing and shall be delivered in person, sent by a nationally recognized express delivery service which tracks delivery, or sent by certified/registered mail, postage prepaid with return receipt requested, to the address indicated on the first page of these Terms, or such other address provided by such party in writing. Either party may change its address for notices under these Terms by giving written notice to the other party by the means specified in this Section. A copy of such notice shall be sent to the attention of the allocated RWS vendor relations manager.

30. Waiver

The failure by either party to exercise any right hereunder shall not operate as a waiver of such party's right to exercise such right or any other right hereunder at any time. No waiver shall be effective unless made in writing.

31. Survival, Severability

Upon expiration, cancellation or termination of these Terms, the obligations which by their nature are intended to survive expiration, cancellation or termination of these Terms shall survive.

If any provision of these Terms is found invalid, unlawful or unenforceable by any court of competent jurisdiction or other government authority, (i) such provision will be deemed replaced with an enforceable provision which most closely embodies the original intent of the parties, and (ii) the remaining provisions will continue in full force and effect.

32. Third Party Rights

References to RWS herein shall include subsidiary, Affiliates, and associate companies of RWS. Save for a subsidiary, Affiliate or associate company of RWS, these Terms are not intended to be for the benefit of, and shall not be enforceable by any person who is not named at the date of these Terms as a party to it or any person who claims rights under the Contracts (Rights of Third Parties) Act 1999 or otherwise, and neither party can declare itself a trustee for the benefit of a third party.

33. General

33.1. The section headings used in these Terms are intended for convenience only and shall not be deemed to supersede or modify any provision(s).

33.2. The parties agree that the binding language of these Terms is English.

33.3. The Parties have expressly requested that these Terms and any ancillary document be drafted in English.